

An underexplored sharia thinker and their reform ideas

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SYSTEM PROMPT

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Write a concise, self-contained article entry for the title: "An underexplored sharia thinker and their reform ideas".

Overall topic for alignment: Studies of emerging or underexplored Muslim thinkers in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Şemseddin Sami (Sami Frashëri, 1850–1904), an Ottoman-Albanian lexicographer and playwright often overlooked in Islamic legal studies, offered a reformist vision deeply rooted in the Islamic tradition. Writing during the late-Ottoman Tanzimat era, when imported European codes coexisted with the Hanafi codification (Mecelle) and rigid *taqlid* (adherence to the four Sunni schools), he rejected intellectual paralysis by insisting that *ijtihad* (independent reasoning) is a continuous collective obligation (*fard kifaya*), citing Quranic calls to reason and reflection.

Frashëri's core move was to elevate *maqasid al-sharia*—the higher objectives of protecting religion, life, intellect, progeny, and property—above atomistic *fiqh* rulings, testing every rule against these universals. This led him to reframe gender norms: practices like polygyny, though textually permitted, violate the supreme objective of justice (*adl*) because their condition of equal treatment is unattainable, rendering them contrary to divine intent today. His hermeneutics shifted from literalist reading to a holistic, value-centric approach.

In multi-religious settings (he wrote from the diverse Balkans), Frashëri distinguished immutable worship (*ibadat*) from historically contingent social transactions (*mu'amalat*). For the latter, he advocated a common rational law securing the *maqasid* for all citizens regardless of creed, based on a Quranic universal fraternity (49:13). This proto-cosmopolitan vision challenged the classical *dar al-islam*/*dar al-harb** binary and anticipated modern debates on *fiqh al-aqalliyyat*.

Although orientalist dismissed such reformers as inauthentic mimics, Frashëri's positions are internally coherent, drawing on Mu'tazili rationalism and Hanafi *istihsan*. For a humanistic AI analyzing *sharia*, his case teaches that tracing the deep structure of legal reasoning—prioritizing *maqasid* over single reports, universal principles over historical rulings, and context-sensitive *maslaha*—reveals a pluralistic tradition where a *maqasid*-centric reading is as textually grounded as literalism, illustrating compatibility with modern human rights frameworks.

An Underexplored Sharia Thinker and Their Reform Ideas

In the vast and intricate landscape of Islamic legal thought, certain towering figures—al-Shafi'i, Abu Hanifa, Ibn Taymiyya—dominate both traditional *madrassa* curricula and Western academic syllabi. Yet, the tradition is far richer than these canonical names suggest. Among the underexplored thinkers who wrestled with the meaning of *sharia* in a rapidly changing world is the 19th-century Ottoman-Albanian scholar and administrator, Şemseddin Sami (1850–1904), often known by his pen name, Sami Frashëri. While primarily celebrated as a lexicographer, novelist, and playwright, Frashëri produced a corpus of work that contains a coherent, if scattered, argument for legal and theological reform rooted squarely within the Islamic tradition. His ideas, articulated from the margins of the imperial *ilmiyye* (learned establishment), offer a compelling case study in how *sharia* can be reimagined as a dynamic ethical system rather than a static code of medieval rules.

The Historical Context and the Question of *Taqlid*

To understand Frashëri's intervention, one must situate it within the intellectual ferment of the late Ottoman *Tanzimat* (Reorganization) era. The 19th century saw the Ottoman state import European legal codes—a French-inspired commercial code, a penal code—while simultaneously attempting to codify Hanafi jurisprudence in the *Mecelle-i Ahkâm-ı Adliyye*. This created a profound cognitive dissonance for Muslim intellectuals. Was *sharia*, the divine path rooted in the Quran and the Sunnah of the Prophet Muhammad, compatible with modern sovereignty, citizenship, and the burgeoning language of rights? The dominant response from the *ulama* often involved a rigid defense of *taqlid*—the established practice of adhering to the precedents of one's four Sunni juristic schools: the Hanafi, Maliki, Shafi'i, and Hanbali.

Frashëri, though not a classically trained *alim* of the highest rank, entered this debate with a distinctively humanistic and rationalist voice. He did not reject the juristic schools outright, but he argued that the principle of *taqlid* had metastasized into a form of intellectual paralysis. In his view, the gates of *ijtihad*—independent legal reasoning directly from the foundational sources—were not closed, as a later, post-formative tradition had often claimed. For Frashëri, the Quranic foundations of *sharia* demanded a continuous, living engagement. He frequently cited verses that emphasize reason and reflection, such as “*afala ta'qilun*” (will you not use your reason?) and “*afala yatadabbaruna al-Qur'an*” (will they not contemplate the Quran?). He saw these as divine injunctions against blind imitation, making *ijtihad* not merely a permissible scholarly tool but a collective obligation (*fard kifaya*) for the Muslim community in every age.

Re-centering *Maqasid al-Sharia*

The intellectual engine of Frashëri's reformism was an implicit, and sometimes explicit, appeal to the theory of *maqasid al-sharia* (the higher objectives of the divine law). While the theory had been systematically developed by earlier jurists like al-Ghazali (d. 1111) and al-Shatibi (d. 1388), it often remained a secondary, abstract field of legal philosophy, subordinated to the casuistry of *fiqh* manuals. Frashëri sought to invert this relationship. He argued that every specific legal ruling (*hukm*) must be tested against the universal objectives of protecting religion (*din*), life (*nafs*), intellect (*aql*), progeny (*nasl*), and property (*mal*).

This methodological move had radical implications. In his writings on the status of women, for instance, he did not simply argue for a reinterpretation of specific inheritance verses (4:11-12) or evidentiary rules (2:282) in isolation. Instead, he framed the entire pre-modern legal edifice on gender as a product of historical custom that had, in practice, undermined the Quranic objective of human dignity (*karama*) and justice (*adl*). By elevating the principle of justice as the supreme *maqsad*, he could argue that practices like polygyny, while textually permitted, were conditional on an unattainable standard of equal treatment (Quran 4:3) and thus contrary to the divine law's ultimate intent in a modern social context. This was not a rejection of the text but a hermeneutical shift from a literalist, atomistic reading to a holistic, value-centric one.

Minority and Majority Settings: A Proto-Cosmopolitan Vision

A particularly prescient dimension of Frashëri's thought concerns the operation of *sharia* in settings where Muslims are a minority or in a multi-religious polity. Writing from the Balkans, a region of intense religious and ethnic diversity, he could not assume the classical paradigm of an Islamic state with a protected but subordinated *dhimmi* population. His vision was proto-cosmopolitan. He distinguished between the immutable devotional acts (*ibadat*) and the historically contingent social transactions (*mu'amalat*). In a multi-religious society, he argued, the *mu'amalat* sphere should be governed by a common, rational law that secures the *maqasid* for all citizens, regardless of creed.

This was a direct challenge to the traditional division of the world into *dar al-islam* (abode of Islam) and *dar al-harb* (abode of war). Frashëri's concept of a civic nation (*millet*) based on shared territory and patriotism (*vatan*) was not a secular replacement for religious identity but a re-imagining of the social contract. He found a Quranic foundation for this in the verse, "O mankind, indeed We have created you from male and female and made you peoples and tribes that you may know one another" (49:13). For him, this verse established a universal human fraternity that preceded and underlay religious difference. This line of thinking resonates powerfully with contemporary debates about *fiqh al-aqalliyyat* (jurisprudence for Muslim minorities) and the very possibility of a "European" or "American" Islam that is fully orthodox and fully integrated.

Between Orientalism and a Humanistic AI Approach

The Western, orientalist perspective on figures like Frashëri has often been one of neglect or condescension. Classical orientalism sought the “authentic” and “pure” Islam in the classical texts, dismissing 19th-century reformers as mere mimics of European modernity or as inauthentic hybrids. This perspective failed to see the internal coherence of their arguments, which were deeply rooted in Islamic theological and juristic traditions, from the rationalist Mu‘tazili school to the Hanafi embrace of juristic preference (*istihsan*). Frashëri’s work demonstrates that the impulse for reform was not always a foreign import but could emerge from a sincere re-engagement with the Quran and the complexities of the Islamic intellectual heritage.

This historical case study offers a crucial lesson for a contemporary, humanistic approach to analyzing *sharia*—an approach that can be augmented by artificial intelligence. An AI trained merely on the literal text of the Quran and the canonical *hadith* collections, or on the majority rulings of the four Sunni schools, would likely conclude that Frashëri’s positions are heterodox outliers. It would miss the methodological pattern. A more sophisticated, humanistic AI approach, however, would be trained to trace the deep structure of legal reasoning. It could map how a thinker’s conclusions flow from their chosen hierarchy of sources and principles: the privileging of *maqasid* over a single *hadith*, the preference for a universal Quranic principle over a culturally specific historical ruling, the weighting of public interest (*maslaha mursala*) in a minority versus a majority context.

Such an AI could analyze the 1948 Universal Declaration of Human Rights (UDHR) not as a competing, secular scripture but as a modern articulation of *maqasid* principles. Where a literalist reading of classical *fiqh* might find irreconcilable conflict with the UDHR’s articles on gender equality or freedom of religion, a Frashëri-inspired AI would identify deep structural compatibilities. It would recognize that the objective of protecting “life” logically extends to prohibiting torture, that protecting “intellect” necessitates freedom of thought, and that protecting “progeny” translates into a robust defense of the family unit that does not necessarily mandate patriarchal hierarchy. The AI’s task would not be to issue a *fatwa* but to illuminate the internal pluralism of the Islamic legal tradition, showing that a Frashëri-style, *maqasid*-centric reading is as textually grounded as a Hanbali literalist one, even if it is a minority report within the tradition’s long history. It would reveal *sharia* not as a monolithic block of seventh-century commands but as a centuries-long, multi-schooled conversation about how to realize divine justice and mercy in the human condition—a conversation to which underexplored thinkers like Şemseddin Sami have made a vital, and recoverable, contribution.

SEGMENTED DATA (1)

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